

The Debts Recovery Appellate Tribunal (Financial and Administrative Power) Rules, 1997

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The Debts Recovery Appellate Tribunal (Financial and Administrative Power) Rules, 1997

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The Debts Recovery Appellate Tribunal (Financial and Administrative Power) Rules, 1997

Rule THE-DEBTS-RECOVERY-APPELLATE-TRIBUNAL-FINANCIAL-AND-ADMINISTRATIVE-POWER-RULES-1997 of 1997

Published on 24 June 1997

Commenced on 24 June 1997

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The Debts Recovery Appellate Tribunal (Financial and Administrative Power) Rules, 1997

Published vide G.S.R. 337(E), dated 24.6.1997, published in the Gazette of India, Extraordinary, Part II, Section 3(i), dated 24.6.1997

21.

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In exercise of the powers conferred by section 36 of the Recovery of Debts Due to Banks and Financial Institutions Act, 1993 (

51 of 1993

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement .-(1) These rules may be called The Debts Recovery Tribunal (Financial and Administrative Power) Rules, 1997.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-In these rules, unless the context otherwise requires,-

(a)

"Act" means the Recovery of Debts Due to Banks and Financial Institutions Act, 1993 (51 of 1993

).

(b)

"Appellate Tribunal" means the Debts Recovery Appellate Tribunal established under sub-section (1) of section 8 of the Act;

(c)

"[Chairperson]" means a person appointed as [Chairperson]
[Substituted 'Presiding Officer' by Notification No. G.S.R. 1045(E), dated 3.11.2016 (w.e.f. 24.6.1997).]
of an Appellate Tribunal under section 9 of the Act;

(d)

all other words and expressions used and not defined in these rules but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Powers of the [Chairperson] of the Appellate Tribunal

.-The [Chairperson]

[Substituted 'Presiding Officer' by Notification No. G.S.R. 1045(E), dated 3.11.2016 (w.e.f. 24.6.1997).]

shall have the same powers as are conferred on a Head of Department in respect of the General Financial Rules, 1963, the Delegation of the Financial Powers Rules, 1978, the Fundamental Rules, the Supplementary Rules, the Central Civil Services (Leave) Rules, 1972, the Central Civil Services (Joining Time) Rules, 1979, the Civil Services (Pension) Rules, 1972, the Central Civil Services (Conduct) Rules, 1964, the Central Civil Services (Classification, Control and Appeal) Rules, 1965 and the General Provident Fund (Central Services) Rules, 1960 as amended from time to time:

Provided that the exercise of powers by the [Chairperson]

[Substituted 'Presiding Officer' by Notification No. G.S.R. 1045(E), dated 3.11.2016 (w.e.f. 24.6.1997).]

under these rules shall be subject to such instructions as may be issued from time to time by the Central Government.

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